

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click on the blue box that says, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 12/13/2024 10:00 AM

#	Case Name	Tentative
1	Faith Christian Reformed Church vs. Ahn 30-2022-01267669-CU-OR-CJC	Motion to be Relieved as Counsel of Record for Cross-Defendant Joong Han Chung The motion of attorney Emanuel Thomas of The Thomas Firm, to be relieved as counsel of record for cross-defendant Joong Han Chung is GRANTED. The order will become effective upon counsel's filing of a proof of service of the order upon the client. Attorney Thomas to give notice.
2	Chao vs. Chao 30-2024-01416045-CU-OR-CJC	Plaintiff's Motion for 1) Judgment Declaring Defendant Joseph I. Chao Deceased as a Matter of Law, 2) Default Interlocutory Judgment of Partition, and 3) Appointment of Referee

		Plaintiff, Tony I. Chao's motion for a judgment declaring defendant Joseph I. Chao deceased, a default interlocutory judgment for partition, and appointment of referee for the condominium located at 12635 Main St, Unit 201, Garden Grove, CA, 92840, Assessor's Parcel Number 930-534-26 is DENIED. <u>Presumption of Death</u> The statements in plaintiff's declaration and stipulation are conclusory and do not satisfy the first and second elements of the presumption. (See <i>Conservatorship of Geiger</i> (1992) 3 Cal.App.4th 127, 135.) While the motion states plaintiff and defendants are brothers, neither plaintiff's declaration nor the stipulation states they are brothers. Even if they did, neither document provides foundational facts establishing either plaintiff or Jeremy are persons who would likely see or hear from Joseph. Neither document provides facts establishing plaintiff and/or Jeremy were in regular contact with Joseph prior to February 7, 2007. Further, neither document explains the steps that were taken, or by whom, to conduct a diligent search/inquiry about Joseph's whereabouts over the last 17 years. <u>Partition</u> This statutory scheme envisions an interlocutory judgment of partition, and that must come as the result of a trial or summary judgment. (See Code Civ. Proc., § 872.710, subd. (a) ["At the trial, the court shall determine whether the plaintiff has the right to partition."] Neither has occurred. Plaintiff to give notice.
3	Manlapeg vs. UCNC, Inc. 30-2024-01411013-CU-WT-CJC	Defendant's Motion to Stay and Compel Arbitration The Motion to Compel Arbitration brought by Defendant UVNV, Inc. dba Ultra Mobile is GRANTED. There is no dispute Plaintiff executed an "Agreement to Mediate and Arbitrate" with Defendant, wherein Plaintiff agreed to arbitrate "any dispute or controversy arising out of or relating to Employee's hire, employment, remuneration, separation or termination from the Company...." (§9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶3, ¶5; See also ¶3-¶4 and ¶9 of Manlapeg Declaration.) Plaintiff does not dispute the authenticity of her signature and, instead, confirms she signed the agreement. (§9 of Manlapeg Declaration.) There is no dispute the arbitration agreement applies to the claims herein.